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Case Number: 25PSCV01729 Hearing Date: July 2, 2026 Dept: G

Defendant General Motors LLC’s Demurrer to

Plaintiffs Justin Malcolm Fernandez Roldan and Live Anesthesia Services, Inc.’s

First Amended Complaint

Respondent:

Plaintiffs Justin Malcolm Fernandez Roldan and Live Anesthesia Services, Inc.

Defendant

General Motors LLC’s Motion to Strike Portions of Plaintiffs Justin Malcolm

Fernandez Roldan and Live Anesthesia Services, Inc.’s First Amended Complaint

Respondent:

Plaintiffs Justin Malcolm Fernandez Roldan and Live Anesthesia Services, Inc.

TENTATIVE

RULING

Defendant

General Motors LLC’s Demurrer to Plaintiffs Justin Malcolm Fernandez Roldan and

Live Anesthesia Services, Inc.’s First Amended Complaint is SUSTAINED IN PART

WITH TWENTY (20) DAYS LEAVE TO AMEND and OVERRULED IN PART.

Defendant

General Motors LLC’s Motion to Strike Portions of Plaintiffs Justin Malcolm

Fernandez Roldan and Live Anesthesia Services, Inc.’s First Amended Complaint

is deemed MOOT.

BACKGROUND

This
is a Song-Beverly action arising out of the lease of an allegedly defective
motor vehicle. On February 20, 2024, plaintiffs
Justin Malcolm Fernandez Roldan (Roldan) and Live Anesthesia Services, Inc.
(collectively, Plaintiffs) leased an SUV manufactured by defendant General
Motors LLC (GM).

On
May 12, 2025, Plaintiffs filed the Complaint.
On April 10, 2026, Plaintiffs filed the operative Amended Complaint
alleging causes of action for (1) breach of express warranty in violation of
the Song-Beverly Act, (2) breach of implied warranty in violation of the
Song-Beverly Act, (3) failure to service and repair in violation of the
Song-Beverly Act, (4) violation of the Magnuson-Moss Act, and (5) violation of
the Consumer Legal Remedies Act.

On
May 4, 2026, GM filed this demurrer with motion to strike to amended
complaint. On June 18, 2026, Plaintiffs
filed the oppositions, and on June 25, 2026, GM filed the replies.

The
case is set for a case management conference and a hearing on the demurrer with
motion to strike on July 2, 2026.

DEMURRER

GM
demurs to the fifth cause of action for violation of the Consumer Legal
Remedies Act. For the following reasons,
the demurrer is SUSTAINED IN PART WITH LEAVE TO AMEND and OVERRULED
IN PART.

Legal
Standard

A
party may demur to a complaint on the grounds that it “does not state facts
sufficient to constitute a cause of action.”

(Code Civ. Proc., § 430.10, subd. (e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) The court should also draw reasonable inferences in favor of the pleading subject to demurrer. (Kruss v. Booth (2010) 185 Cal.App.4th 699, 727.) The court should liberally construe the complaint to bring substantial justice between the parties. (Addiego v. Hill (1965) 238 Cal.App.2d 842, 845.) To sustain a demurrer, defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994; SKF Farms v. Super. Ct. (1984) 153 Cal.App.3d 902, 905, stating, "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed."; Hahn, supra, at 747, stating, "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.")

Discussion

GM argues that the Complaint fails to allege sufficient facts to support a cause of action for violation of the Consumer Legal Remedies Act. The court agrees in part and disagrees in part.

The Consumer Legal Remedies Act lists "unfair methods of competition and unfair or deceptive acts or practices . . . intended to result or that results in the sale or lease of goods or services" to a consumer. (Civ. Code, § 1770, subd. (a).) In effect, the Consumer Legal Remedies Act lists different types of fraudulent inducement in certain transactions involving consumers. (See id.) The Amended Complaint alleges that GM violated the Consumer Legal Remedies Act through affirmative misrepresentations and omissions.

Affirmative Misrepresentations

The elements of fraud, including a cause of action for fraudulent inducement, “are (a) a misrepresentation . . . ; (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Super. Ct. (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mutual Automobile Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

For the first element, the Amended Complaint alleges that GM represented that the SUV Plaintiffs leased “had characteristics and benefits that [it does] not have” and “was of a particular standard, quality, or grade when [it was] of another.” (AC, ¶¶ 74, 80.) For the second element, Plaintiffs allege that GM knew about the defects in the SUV. (AC, ¶¶ 80–81.) For the third element, the Amended Complaint alleges that GM “knowingly and intentionally concealed material facts. . . .” (AC, ¶ 86.) For the fourth element, Plaintiffs allege that they justifiably relied on GM’s representations because the vehicle was new, and they trusted the brand. (AC, ¶ 83.) For the fifth element, the Amended Complaint alleges that the SUV is unsafe and worthless. (AC, ¶¶ 17, 19, 23, 33, 36, 84.)

Regarding the specific affirmative misrepresentations, however, the Amended Complaint still fails to allege specific facts of the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (See Tarmann, supra, 2 Cal.App.4th at 157.) Thus, the court finds the Amended Complaint fails to state sufficient facts that GM’s alleged affirmative misrepresentations satisfy the elements of fraud.

Accordingly, the demurrer is SUSTAINED WITH LEAVE TO AMEND as to GM's alleged affirmative misrepresentations.

Omissions

In cases claiming fraud through nondisclosure, it is not practical to allege facts showing how, when, and by what means something did not happen. (Alfaro v. Community Housing Improvement System Planning Assn. (2009) 171 Cal.App.4th 1356, 1384; see Vega v. Jones, Day, Reavis & Pogue (2004) 121 Cal.App.4th 282, 296, stating, "The pertinent question in a concealment case is not who said what to whom. . . .") Instead, the focus shifts from "who said what" to (1) whether there was a duty to disclose and (2) the elements of fraud. (Bader v. Johnson & Johnson (2022) 86 Cal.App.5th 1094, 1130–1131.)

Duty to Disclose

An indispensable element of a claim for fraud by concealment is "the defendant must have been under a duty to disclose [material] fact[s] to the plaintiff." (Kaldenbach v. Mut. of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.) "Ordinarily, failure to disclose material facts is not actionable fraud unless there is some fiduciary relationship giving rise to a duty to disclose." (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 482.) "In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 311.) "Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a 'transaction' between the plaintiff and defendant." (Ibid.) Indeed, "[a]s a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties." (LiMandri v.

Judkins (1997) 52 Cal.App.4th 326, 337.) "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (Bigler-Engler, supra, at 312.)

Here, the Amended Complaint alleges that the lease agreement was a transaction between Plaintiffs and GM. (AC, ¶¶ 13–14.) The Amended Complaint further alleges that GM failed to disclose the existence of the SUV's defects to Plaintiffs and that they could not reasonably have been expected to discover the defects. (AC, ¶¶ 74, 80–81, 83.) Thus, the court finds the Amended Complaint states facts sufficient to establish a duty to disclose.

Elements of Fraud

As stated above, the elements of fraud "are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Hinesley, supra, 135 Cal.App.4th at 294.)

For the first element, the Amended Complaint alleges that GM "concealed and failed to disclose the defective nature of the [SUV]." (AC, ¶¶ 74, 80.) For the second element, Plaintiffs allege that GM knew about the defects in the SUV. (AC, ¶¶ 80–81.) For the third element, the Amended Complaint alleges that GM "knowingly and intentionally concealed material facts. . . ." (AC, ¶ 86.) For the fourth element, Plaintiffs allege that they justifiably relied on GM's representations because the vehicle was new, and they trusted the brand. (AC, ¶ 83.) For the fifth element, the Amended Complaint alleges that the SUV is unsafe and worthless. (AC, ¶¶ 17, 19, 23, 33, 36, 84.) Thus, the court finds the Amended Complaint states sufficient facts that GM's alleged omissions satisfy the elements of fraud.

Therefore, the demurrer is OVERRULED as to GM's alleged omissions.

MOTION
TO STRIKE

GM
moves to strike the request for punitive damages. Since the court grants leave to amend the Amended Complaint, the court deems MOOT the motion to strike.

CONCLUSION

For
these reasons, the demurrer to first amended complaint is SUSTAINED IN PART WITH TWENTY (20) DAYS LEAVE TO AMEND as to allegations about defendant GM’s affirmative representations and OVERRULED as to allegations about defendant GM’s omissions.

The
motion to strike portions of first amended complaint is deemed MOOT.